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Iraq: Compensation for ISIS Victims Too Little, Too Late

Reparations Key to Returning Thousands of Displaced Yazidis, Others



A boy walks on a road at the Mamrashan camp for civilians displaced by war, located a half hour's drive from Dohuk city in Iraq, on January 14, 2017. © 2017 Alice Martins/AP Photo

Update 19/06/23: In a [letter](#) dated June 5, 2023, the Iraqi Ministry of Foreign Affairs responded to Human Rights Watch laying out the measures the Prime Minister's office has directed the Iraqi government to take regarding compensation measures, including simplifying security procedures, adequately funding Law No. 20, providing logistical and staffing support to the compensation sub-committee, implementing non-financial aspects of the YSL, and directing the reconstruction of Sinjar.

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- without compensation, many people lack the financial means to rebuild their homes and businesses, so returning home is not an option. Many are stuck in displaced people's camps.
- The Iraqi government should address bottlenecks in the compensation process that hinder the timely payment of funds to applicants and provide other services people need to return home.

(Beirut) – [Iraqi](#) authorities have failed to pay financial compensation that thousands of Yazidis and others from the Sinjar district are entitled to under Iraqi law for destruction of and damage to their property both by the Islamic State (ISIS) and the Iraqi and US-led coalition military battles against them, Human Rights Watch said today. A US-led international coalition expelled ISIS from Sinjar in late 2015, but at least 200,000 Sinjaris continue to languish in displacement camps across northern Iraq.

“Without compensation, many Sinjaris lack the financial means to rebuild their homes and businesses, so returning home is simply not an option,” said [Sarah Sanbar](#), Iraq researcher at Human Rights Watch. “Iraqi authorities should distribute funds already earmarked for compensation to help people go home and rebuild their lives.”

Sinjar, a mountainous district in northwestern Iraq, is home to a mixed population of Kurds, Arabs, and Yazidis, an ethnic and religious minority. As of 2023, the [200,000](#) Sinjaris who remain displaced includes 85 percent of the district's Yazidi population. Many displaced people have been living in camps since 2014. Those who have returned face an unstable security situation and inadequate or nonexistent public services, including education, health care, water, and electricity.

To understand the barriers to their return, Human Rights Watch interviewed dozens of Sinjaris living in displaced camps in Duhok governorate; three Sinjaris who had returned to Sinjar; local government officials including the governor of Ninewa, Najim al-Joboury; a member of parliament representing Sinjar, Majid Shingali; Sinjar's acting mayor, Naif Saido; a former Ninewa provincial council member; and a representative from the provincial government's compensation office in Sinjar. Human Rights Watch also interviewed the former mayor of the Sinjar Self Administration, representatives of six civil society organizations; and two Western diplomats.

The only Sinjaris to receive compensation so far are a small number of Yazidis who applied under a law passed by the Iraqi government in 2021, the [Yazidi Survivors Law](#), to provide compensation specifically for Yazidis and other ethnic minorities, including Turkmen, Christians, and Shabaks, who were [summarily killed](#), [kidnapped](#), [enslaved](#), and [raped](#) by ISIS in 2014. Thousands of Yazidis remain displaced and 2,700 remain [missing](#).

The first group of [420 Yazidi women](#) received financial compensation under the Yazidi Survivors Law in February 2023. While this is a positive and necessary step toward addressing the abuses

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Those not covered by the Yazidi Survivors Law are entitled to apply for compensation under [Law No. 20 of 2009](#), which has a broader remit and entitles Iraqis to make compensation claims for damages “as a result of war operations, military mistakes, and terrorist operations.” The law provides for compensation to all civilian victims of war or their family members in cases of “death, enforced disappearance, disability, injuries, damaged property and/or disadvantage related to job or education.” Compensation for property damage extends to damaged vehicles, houses, farmland, furniture, shops, and companies.

Since the Sinjar Compensation Office under Law No. 20 opened in 2021, 10,500 Sinjaris have applied for compensation, an office representative told Human Rights Watch. Although about 5,000 of these claims have been approved, not a single family has received the funds to which they are entitled, the representative said.

Majid Shingali, a member of parliament from Sinjar, told Human Rights Watch that compensation claims have not been paid in Sinjar because of federal budgetary issues since 2021. Iraq did not pass a federal budget in 2022 due to its inability to form a government following the October 2021 elections. A draft budget covering 2023 – 2025 was [approved](#) by the Iraqi council of ministers in March 2023.

People interviewed cited the government’s failure to provide compensation as a primary barrier to their return, in addition to a lack of essential services and security risks in Sinjar.

“Your house is destroyed and then you need to pay to be compensated for something that wasn’t your fault,” a shopkeeper living in a displaced person’s camp said.

People interviewed said that the compensation procedures under both the Yazidi Survivors Law and Law No. 20 are complex, lengthy, expensive, and in some cases entirely inaccessible. The process under Law No. 20 in Sinjar, as in other areas of Iraq, has been plagued by procedural and processing inefficiencies and budgetary issues.

People interviewed reported spending up to two years and from 300,000 Iraqi Dinars (IQD) to up to 1 million IQD (US\$205 to US\$762) on legal and administrative fees, and transportation to complete the procedures. Often, they said, the amounts of compensation that the Sinjar Compensation Committee recommended are substantially lower than the value of the destroyed home or business or the cost to fully rebuild.

For some, the cost and bureaucratic complexity of the process coupled with the apparent fruitlessness of doing so has led them to give up or not even apply for compensation.

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damage. The committee is significantly understaffed, with only five officials from the Sinjar Compensation Office, the local government agency that receives and adjudicates claims in Sinjar, tasked with processing thousands of claims.

A representative of the Sinjar Compensation Office said that when the Sinjar Compensation Committee approves a claim, they are sent for final approval to either Mosul, for claims under 30 million IQD (\$20,500), or to Baghdad, for claims above 30 million IQD. The claim is then sent to the relevant Finance Department for payment processing and distribution.

The representative said that understaffing contributed to the wait times, but that the lack of payment for approved claims was the result of a bottleneck in the Finance Department of Ninewa Governorate in Mosul.

Of the 5,000 claims that have been approved by the Sinjar Compensation Committee, 1,500 are awaiting final approval from Mosul or Baghdad, and 3,500 are waiting for payment from the Finance Department.

The Iraqi government should address bottlenecks in the compensation process that hinder the timely payment of funds to applicants and ensure that Law No. 20 is sufficiently funded, Human Rights Watch said. Additionally, to lift other barriers to return for Sinjaris and fulfill the economic rights of everyone who had been living there, Iraqi Authorities should fund the development of both needed physical infrastructure and the delivery of public services in Sinjar, including education, health care, water, and electricity among others.

The Iraqi Constitution of 2005 guarantees compensation to the families of those killed and injured as a result of acts it deems to be terrorist. Human Rights Watch has previously reported on how the [discriminatory application](#) of Law No. 20 has prevented families with perceived ISIS affiliation from receiving or applying for compensation.

“Compensation is a crucial step in recognizing the suffering civilians have experienced and helping them rebuild their lives,” Sanbar said. “The government needs to allocate and pay out funds for approved compensation claims as quickly as possible. Sinjaris should not have to keep waiting in vain.”

Flaws in Compensation under Law No. 20

Sinjaris interviewed said that the compensation process under Law No. 20 is complicated, lengthy, and expensive. Applicants must obtain stamps or documents from multiple agencies including the local municipality office, courts, the Electricity and Agriculture Ministries, the Water Department,

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People interviewed reported spending up to 1 million IQD (\$762) in administrative fees, legal fees, and the costs of traveling between Sinjar, Mosul, and Dohuk. The final step of the process is to obtain security clearance from the Interior Ministry's Intelligence and National Security Service, to ensure the applicants are not wanted for ISIS affiliation, which can take months.

Applicants are also required to list every piece of furniture that was looted or destroyed. Naif Saido, the acting mayor of Sinjar, said that he estimated that 90 percent of items under review for compensation are furniture. The process can take years to complete.

A shopkeeper in the Khanke camp for displaced people lamented the time and money he had spent on the process: "I spent one year and 300,000 IQD (\$205) working on my claim and going from department to department. It was a big hassle. Everybody knows we fled because of ISIS, so why do we need to go to National Security to prove we aren't ISIS? It's a crime. Your house is destroyed and then you need to pay to be compensated for something that wasn't your fault."

As he was speaking, his friend sitting with him nodded vigorously, adding: "The process is not worth the money or time."

The costs of completing the compensation process coupled with slim prospects for swift and adequate compensation have led many Sinjaris to forgo the procedure altogether. For others, the process may be entirely inaccessible. Compensation claims must be filed in person in Sinjar, meaning those unable to do so – due to security fears, reduced mobility, or because they live outside Iraq – are unable to file a claim.

Two people interviewed said that the amounts the damage detection committee recommends are rarely enough to rebuild a home, and often are far lower than the value of the home destroyed. One Sinjari man, Khalil Hasan, said he was displaced by ISIS from the village of Tel Banat in 2014, and his home and shop were destroyed during military operations. He completed the compensation process in early 2023, but he has not yet received any money:

I spent 1 million IQD (\$762 USD) on the compensation process and had to travel to Sinjar from Dohuk six times. I had to pay the damage detection committee 100,000 IQD (\$68) for my shop and 300,000 IQD (\$205) for my house to have them assess the damage. They recommended compensation of 10 million IQD (\$6,800) for both my shop and house, even though I bought my house for 50 million IQD (\$34,000). The whole process could be simplified.

A returnee to Sinjar said that his house and farm were destroyed by ISIS and that he was now living in a relative's house. He said, "I've just begun my compensation file. I hadn't started working on it right away since I couldn't afford the costs, including fees and transportation. I learned from others

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Another returnee whose house and store were looted said: “I haven’t started working on it because it costs me time and money. It is not worth spending money and time on something you are unsure of receiving because nobody I know has received it up to this point.”

Several houses of displaced Sinjaris that were not damaged by military operations, or that were only partially damaged, are being occupied by other Sinjari returnees. Representatives of local nongovernmental organizations said that providing compensation that allows Sinjaris to rebuild their homes could go a long way in solving this issue. Adel Majeed Omar, director of the local organization Beit Sinjar (Sinjar House), said:

There are displaced families who can’t return because their house is being occupied by returnees. There is nobody in Sinjar who can resolve these disputes, but even if there was mediation in occupation disputes, the other family would have nowhere else to go and no money to rebuild, so it’s a stalemate. Most people occupying houses in Sinjar Town came from nearby villages that are destroyed or unsafe.

Human Rights Watch spoke with a man displaced to the Kurdistan Region whose house in Sinjar town remains intact but is currently occupied by a family displaced from a neighboring village. When asked if he would return if his house was vacated, he said he had no intention of returning, since he had settled in Dohuk and did not want to uproot his family again. Naif Saido, acting mayor of Sinjar, estimated that about 10 percent of Sinjaris are in a similar situation and would not return to Sinjar since they have settled elsewhere.

Inadequate Compensation under the Yazidi Survivors’ Law

The passage of the Yazidi Survivors’ Law and payments under the act to a first group of survivors are positive developments, but serious gaps in implementation and procedural issues remain, Human Rights Watch found.

Two months after the application process opened, in September 2022, the government began requiring survivors to [file a criminal complaint](#) to receive reparations, even though the payments are administrative. The Yazidi Survivors’ Law Committee, established to oversee applications by survivors, is chaired by a judge nominated by Iraq’s High Judicial Council. Membership includes the director general of female Yazidi survivor’s affairs and representatives from the Ministries of Interior, Health, and Justice.

The psychological impact of survivors having to recount the details of their abuse coupled with the mistreatment, stigma, and shame they may face from police and courts during this process risks retraumatizing them, Human Rights Watch said. For survivors outside Iraq unable to access the courts, this requirement renders the process even more arduous. The Yazidi community is highly

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Lack of faith in the Iraqi judiciary, including concerns over its ability to maintain confidentiality, has led some survivors to choose not to apply for compensation. For others, filing a criminal complaint would expose them to other risks. For example, kidnapped Yazidi children forced to participate in ISIS acts may risk self-incrimination by filing a criminal complaint.

The committee also introduced highly onerous evidentiary standards. These [include](#) a requirement to provide court documents from the judicial complaint, four witnesses who can testify to the accuracy of the applicant's claim, documents issued by ISIS proving a kidnapping, medical reports issued by official authorities, registration with four government offices, and photographs, videos, or articles proving the kidnapping or survival incident in addition to the criminal complaint.

The requirement to file a criminal complaint and these burdensome evidentiary requirements [lack a legal basis](#) within [the law and its bylaws](#), contradict the safeguards deliberately included in those texts, and are unnecessary given the plethora of evidence collected by official bodies, nongovernmental groups, and the media. The bylaws explicitly allow for supporting documents like government records, reports from nongovernmental groups, and witness testimony to be considered admissible. Committee members may also interview applicants who lack sufficient evidence.

Unlike Law No. 20, which limits possible reparations to financial compensation, the Yazidi Survivors Law includes provisions for other forms of restitution and restorative justice. The law includes clauses on rehabilitation, land, housing, continued education, employment, recognition of the genocide, criminal prosecutions of those responsible for abuses, the search for those who remain missing, protection of witnesses and survivors, and the establishment of a National Day of Remembrance on August 3.

However, these commitments remain largely unimplemented as well.

Recommendations

To the Iraqi government:

- Strengthen the capacity of institutions involved in the compensation process, including by ensuring sufficient staffing of offices and addressing bottlenecks in application procedures, to ensure claims are processed and paid swiftly and adequately.
- Ensure adequate funding is allocated for reparations programs, including both for institutions needed to process claims and for payments for entitlements.
- Adopt a multi-pronged approach to reparations that goes beyond financial compensation, including measures such as restitution, rehabilitation, and reconstruction.

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- Remove the requirement for survivors to file a criminal complaint to be eligible for reparations under the Survivors' Law and adopt simplified evidentiary requirements in line with international standards, allowing speedy and accurate processing of claims, without undue and unnecessary burdens on applicants.

To the US-led coalition:

- Conduct thorough and impartial investigations into all instances of civilian casualties caused by coalition military intervention in Iraq and provide reparations to victims.
- Provide technical and financial support to the Iraqi government in implementing reparations programs including but not limited to Law No. 20 and the Survivors' Law.

To the international community:

- Provide support to organizations supporting victims filing claims or raising awareness about reparations processes.
- Provide technical and financial support to the Iraqi government in implementing reparations programs, including but not limited to Law No. 20 and the Survivors' Law.

International Legal Obligations

International human rights law establishes a right to compensation for victims of violations. This right has been explicitly stated in the *Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment*, and the *International Convention for the Protection of All Persons from Enforced Disappearances*. The right to compensation is also derived from the right to an effective remedy under the International Covenant on Civil and Political Rights.

The framework for redressing human rights and humanitarian law violations is provided in the [United Nations Basic Principles and Guidelines on the Right to a Remedy and Reparation for Victims of Gross Violations of International Human Rights Law and Serious Violations of International Humanitarian Law](#) (2005). This document specifies that victims have a right to “adequate, effective and prompt reparation for harm suffered,” clarifying that reparation may take the form of restitution, compensation, rehabilitation, satisfaction and guarantees of nonrepetition.

The [Guiding Principles on Internal Displacement](#) say that competent authorities should provide compensation or other appropriate forms of compensation to displaced people when recovery of their property is not an option. The Principles also require authorities to provide them with basic shelter and housing. The [right to adequate housing](#) under human rights law is part of the right to an adequate standard of living. Individuals have a right to adequate compensation for any property